

26STCV18090 26STCV18090

County: los-angeles

Division: Civil Law and Motion

Department: 833

Hearing date: 2026-09-23

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Case Number: 26STCV18090 Hearing Date: September 23, 2026 Dept: 833

Mercedes-Benz Vehicle Trust, et. al. Case No. 26STCV18090

Hearing:

September 23, 2026

v.

Location:

Stanley Mosk Courthouse

Department:

833

CCIX

Holdings, et. al. Judge: Joseph

Lipner

[Tentative] Order Granting

Application for Writ of Possession

INTRODUCTION

Plaintiff Mercedes-Benz Vehicle Trust and

Mercedes-Benz Financial Services USA LLC ("Plaintiffs") move for writ of

possession against Defendant Neenu Khemlani and CCIX Holdings, Inc. (collectively,

"Defendants") over the following property: 2022 Mercedes-Benz S580V4 motor

Vehicle, Serial No. W1K6G7GB2NA12939. Defendants have not filed an opposition.

The Court GRANTS the writ of possession and

issues a turnover order.

LEGAL STANDARD

“Upon the filing of the complaint or at any time thereafter, the plaintiff may apply pursuant to this chapter for a writ of possession by filing a written application for the writ with the court in which the action is brought.” (Code Civ. Pro. § 512.010, subd. (a).)

Pursuant to Code of Civil Procedure section 512.010, subd. (b), the application must be submitted under oath and include:

- (1) A showing of the basis of the plaintiff's claim and that the plaintiff is entitled to possession of the property claimed. If the basis of the plaintiff's claim is a written instrument, a copy of the instrument shall be attached.
- (2) A showing that the property is wrongfully detained by the defendant, of the manner in which the defendant came into possession of the property, and, according to the best knowledge, information, and belief of the plaintiff, of the reason for the detention.
- (3) A particular description of the property and a statement of its value.
- (4) A statement, according to the best knowledge, information, and belief of the plaintiff, of the location of the property and, if the property, or some part of it, is within a private place which may have to be entered to take possession, a showing that there is probable cause to believe that such property is located there.
- (5) A statement that the property has not been taken for a tax, assessment, or fine, pursuant to a statute; or seized under an execution against the property of the plaintiff; or, if so seized, that it is by statute exempt from such seizure.

Before the hearing on the Writ of Possession, the Defendant must be served with (1) a copy of the summons and complaint; (2) a Notice of

Application and Hearing; and (3) a copy of the application and any affidavit in support thereof. (Code Civ. Pro. § 512.030.)

“The writ will be issued if the court finds that the plaintiff’s claim is probably valid and the other requirements for issuing the writ are established.” (Code Civ. Pro. § 512.040(b).) “A claim has ‘probable validity’ where it is more likely than not that the plaintiff will obtain a judgment against the defendant on that claim.” (Code Civ. Pro. § 511.090.)

DISCUSSION

A. Notice

Plaintiffs
provided proper notice, per the proofs of service filed on July 14, 2026.

B. Probable Validity of Plaintiff’s Claim

Plaintiffs seek writs of possession based on its cause of action for (1) breach of contract; (2) breach of guaranty; (3) Claim & Delivery; and (4) conversion.

On or about November 29, 2022, Defendants took possession of a Motor Vehicle, according to the terms of a Motor Vehicle Lease Agreement (“Agreement”). (Rutherford Decl., ¶ 11.) CCIX agreed to pay for the use of the Vehicle in 39 consecutive base monthly lease payments in the sum of \$2,115.50 plus taxes, commencing on November 29, 2022, and the remaining payments due on the 29th day of each month until the expiration of the Agreement on February 28, 2026. (Rutherford Decl., ¶ 12.)

Plaintiffs in this action received an interest in the car by assignment from the dealer. (Rutherford Decl., ¶ 14.) Plaintiffs have performed all of the conditions, covenants, and promises required under the terms of the Agreement. (Rutherford Decl., ¶ 16.)

On or about July 29, 2025, Defendants CCIX and Khemlani did not make the required monthly payment. (Rutherford Decl., ¶ 17.) Plaintiffs elected to accelerate the terms of the Agreement and declare all unpaid sums immediately due and payable. (Rutherford Decl., ¶ 17.) Defendants failed to return possession of the Vehicle, despite Plaintiffs requesting payment and the Vehicle itself. (Rutherford Decl., ¶¶ 17-19.)

There is due, owing, and unpaid from Defendants the sum of \$89,749.90 plus the total monthly payment of \$2,316.47 for each month after February 28, 2026. (Rutherford Decl., ¶ 18.)

The balance due
suggests Plaintiffs will prevail on the claim.

C.

Wrongful Detention

Pursuant to Code of Civil Procedure section 512.010, subd. (b)(2), the application must include “a showing that the property is wrongfully detained by the defendant, of the manner in which the defendant came into possession of the property, and, according to the best knowledge, information, and belief of the plaintiff, of the reason for the detention.”

Plaintiffs have made this showing.

D.

Description and Value of Property

Pursuant to Code of Civil Procedure section 512.010, subd. (b)(3), the application must include a particular description of the property and a statement of its value. Plaintiffs
have provided a particular description of the property, by make and serial number.

Plaintiffs therefore satisfies
section 512.010, subd. (b)(3).

E.

Statutory Statement

Pursuant to Code

of Civil Procedure section 512.010, subd. (b)(5), Plaintiffs must provide a statement that the property has not been taken for a tax, assessment, or fine, pursuant to statute and has not been seized under an execution against the Plaintiff's property. The application includes this statement. (Application, ¶ 8a.)

F.

Location of the Property

Pursuant to Code

of Civil Procedure section 512.010, subd. (b)(4), Plaintiffs must identify the probable location of the Vehicle and establish probable cause to that effect.

The Agreement states that after default, Defendants have consented and authorized Plaintiffs to obtain data from the vehicle including location of the vehicle. (Rutherford Decl., ¶ 21.) The Vehicle was equipped with an electronic tracking device, which revealed the location as 315 S. Las Palmas Ave., Los Angeles, CA 90020. (Ibid.)

That address is

also Defendants' billing address on file, and the United States Postal Service has confirmed that Defendants currently receive mail at that address. (Rutherford Decl., ¶ 23.)

Accordingly, the

Court concludes that Plaintiffs have established probable cause as to the location of the Vehicle.

G.

Undertaking.

Code of Civil Procedure section 515.010 requires an undertaking to be filed before the writ issues in the amount of "not less than twice the value of the defendant's interest in the property."

Section

515.010, subd. (a) states that the value of the defendant's interest "is determined by the market value of the property less the amount due and owing on any conditional sales contract or security agreement and all liens and encumbrances on the property, and any other factors necessary to determine the defendant's interest in the property."

However, Section 515.010, subd. (b)

says that “[i]f the Court finds that the Defendant has no interest in the property, the court shall waive the requirement of the Plaintiff’s undertaking.

Instead,

Section 515.010, subd. (b) requires Defendant to post an undertaking in an amount equal to the maximum retail value.

Plaintiffs have identified the value

of the property as \$63,340.00. (Rutherford Decl., ¶ 24.) There is no

evidence that Defendants have any interest in the property, so the Court waives the requirement of Plaintiffs’ undertaking. Instead, Defendants must post an undertaking in an amount equal to the maximum retail value – so \$63,340.00.

H.

Turnover Order

Section 512.070

states: “If a writ of possession is issued, the court may also

issue an order directing the defendant to transfer possession of the property to the plaintiff. Such order shall contain a notice to the defendant that failure to turn over possession of such property to plaintiff may subject the defendant to being held in contempt of court.”

(emphasis added.) “Thus a ‘turnover’ order, issued pursuant to section 512.070, is not a separate remedy but rather an alternative means of enforcing a writ of possession.” (Edwards v. Sup.Ct. (1991) 230 Cal.App.3d 173, 178.)

The Court also

issues a turnover order.

I.

Oral Evidence

“A party seeking permission to introduce oral

evidence, except for oral evidence in rebuttal to oral evidence presented by

the other party, must file, no later than three court days before the hearing,

a written statement stating the nature and extent of the evidence proposed to

be introduced and a reasonable time estimate for the hearing.” (Cal. Rules of Court, Rule 3.1306, subd. (b).)

Plaintiffs have not complied with this rule and

have not requested oral evidence.

CONCLUSION

The Court GRANTS the writ of possession and issues a turnover order.

IT IS SO ORDERED.

Dated: September
23, 2026

Joseph
Lipner

Superior
Court Judge